

divest the court of authority to rule on untimely motions to compel other than to deny them. (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1408-1410 [emphasis in original].)

Separate Statements: Even in the alternative, the Court would deny the motions for failure to provide appropriate separate statements: A separate statement provides all the information necessary to understand each discovery request and all the responses to it that are at issue; the separate statement must be full and complete so that no person is required to review any other document to determine the full request and the full response. (Cal. Rules of Court, rule 3.1345(c).)

For each, where a further response is requested, the separate statement “must include,” inter alia, the text of the question, the text of each response, answer, or objection, and the factual and legal reasons for compelling further responses, answers, or production. (Cal. Rules of Court, rule 3.1345(c)(1)-(3).) A separate statement must be “a separate document filed and served with the discovery motion.” (Cal. Rules of Court, rule 3.1345(c).)

Here, Plaintiff did not supply separately-filed and separately served separate statements. Instead, purported statement are attached at the end of the lengthy motion filings. In examining those pages, the “separate statement” is not full and complete because, inter alia, it does not identify the discovery type or set at issue (e.g. special interrogatories or production requests) and, starting at number 76, it does not include the verbatim response. The failure to supply a useful separate statement that complies with court rules is a separate basis for denying the motions.

29. *Rincon v. Arctic Cooling Systems, LLC, et al*, Case No. CIVSB2205435
Motion for Final Approval of Class Action Settlement
7/15/26, 1:30 p.m., S-17

The Court would **GRANT**.

Here, Plaintiff Salazar submitted a notice to the Labor and Workforce Development Agency (LWDA) on September 16, 2021, in anticipation of a claim for civil penalties pursuant to the Private Attorneys General Act (PAGA). On March 22, 2022, Plaintiff Gonzalez sent her notice to the LWDA.

On November 23, 2021, Plaintiff Salazar filed his claim for civil penalties pursuant to PAGA (CIVSB2134173). Shortly thereafter, on January 18, 2022, Plaintiff Rincon filed his claim for civil penalties pursuant to PAGA (CIVSB2205435). Thereafter, Plaintiff Rincon filed this instant case as a putative wage-and-hour class action (CIVSB2205435). On June 9, 2025, this instant was amended in furtherance of this proposed settlement, folding the various Plaintiffs and claims into this single action.

The operative First Amended Complaint (FAC) alleges violations related to (1) overtime wages; (2) meal periods; (3) rest breaks; (4) minimum wages; (5) final pay; (6) wage timeliness; (7) accurate wage statements; (8) the keeping of requisite payroll records; (9) reimbursements; as well as (10) violation of the unfair competition law (UCL); and (11) civil penalties pursuant to PAGA. Importantly, the UCL and PAGA claims are underpinned by the alleged wage-and-hour violations.

During the litigation, Plaintiffs sought and received extensive discovery. They also received substantial payroll and time records, as well as handbook and policy documents. Thereafter, on January 16, 2024, the parties engaged in a full-day, arms-length mediation with Lisa Klerman an experienced neutral. Following the mediation, the parties came to an agreement on February 22, 2024. The notice of the settlement has been given to the LWDA. (Del Castillo Decl., ¶¶89-91.)²

The parties successfully moved for Preliminary Approval of the Settlement before this Court on November 7, 2025. As preliminary matter, this Court found the total settlement amount of \$75,000.00 to be fair, reasonable, and adequate given the strength of the Plaintiff's case and the risks involved in litigation. Adequate discovery and investigation had occurred, and there was no evidence of fraud or collusion.

There are 43 class members and 41 PAGA aggrieved employees. (Gonzalez Decl., ¶¶5 & 14.) Notices were mailed on or about April 24, 2026. (Gonzalez Decl., ¶5.) There were no notices returned; no requests for exclusion; no objections; and no workweek disputes. (Gonzalez Supp. Decl. ¶¶1-6.) This Motion seeks final approval of the proposed settlement.

Statement of the Law

Settlement of a class action requires court approval. (Rules of Court, rule 3.769.) The moving party must demonstrate that the settlement is "fair, adequate and reasonable." (*Kullar v. Foot Locker Retail* (2008) 168 Cal.App.4th 116, 126.) The court has "broad discretion in making this determination." (*In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.) Relevant factors may include "the strength of the plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintain class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement." (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801.) This list of factors "is not exhaustive and should be tailored to each case." (*Ibid.*) The court may "engage in a balancing and weighing of factors depending on the

² Troublingly, the declaration still indicates only an "understanding" of what has been given to the LWDA. This phrasing is a poor practice and is potentially objectionable, as it fails to demonstrate foundation or direct knowledge of compliance with the PAGA procedural requirements. Nevertheless, no objections have been lodged. Please use less objectionable phrasing in the future.

circumstances of each case.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 245 overruled on other grounds.)

“Although the court gives regard to what is otherwise a private consensual agreement between the parties, the court must also evaluate the proposed settlement agreement with the purpose of protecting the rights of the absent class members who will be bound by the settlement.” (*Wershba, supra*, 91 Cal.App.4th at p. 245, quoting *Dunk, supra*, 48 Cal.App.4th at p. 1801.)

“The court must therefore scrutinize the proposed settlement agreement to the extent necessary to ‘reach a reasoned judgment that the agreement is not the product of fraud or overreaching by, or collusion between, the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned.’” (*Ibid.*, quoting *Officers for Justice v. Civil Service Com’n* (9th Cir. 1982) 688 F.2d 615, 625.) The settlement is entitled to “a presumption of fairness . . . where: (1) the settlement is reached through arm’s-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.” (*Kullar v. Foot Locker Retail* (2008) 168 Cal.App.4th 116, 128, quoting *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1802.)

Summary of the Proposed Class Settlement

The proposed final settlement terms are largely in line with those approved preliminarily: Defendants will pay a gross, non-reversionary settlement amount of \$75,000.00, from which will be deducted (1) up to \$18,750.00 for Class Counsel’s attorneys’ fees (1/4th of gross); (2) costs of \$22,129.06; (3) Plaintiffs’ enhancement fees of \$9,000.00 total (or \$3,000 each for the three named representative plaintiffs); (4) claims administration fees of \$4,250.00; and (5) PAGA penalties of \$15,000.00 (of which \$11,250, or 75%, will go to the LWDA and \$3,750, or 25%, will go to the aggrieved employees).

This will leave a wage-and-hour only net settlement amount of a non-reversionary \$5,870.94. This amount would be split by the class of 43 employees in proportionate shares determined by number of workweeks within the Settlement Class Period. The average per class member would be \$136.53.

Since there are 41 aggrieved employees for PAGA purposes, the average PAGA payout is \$91.46.

Tentative

The Court finds no evidence of fraud or collusion. Class Counsel are able, experienced, and well-qualified to represent the class. The representative is also well qualified to represent. The settlement was reached through an arms-length negotiation. The Court incorporates the reasons for the preliminary approval, issued on November 7, 2025, into its ruling by this reference and would:

1. Certify the Class for settlement.

2. Approve the settlement as fair and reasonable, finding that class members were given notice, advised of their rights and to object or exclude themselves.
3. Appoint Janeth Rincon, Johnny Salazar, and Gabriella Gonzalez as Class Representatives and approve their service award of \$9,000.00 (or \$3,000 each).
4. Appoint Timothy Del Castillo of Castle Law: California Employment Counsel, P.C., and Tara Zabehi of Lawyers for Justice, P.C., as Class Counsel for settlement purposes.
5. Approve administrative expenses as stated to Phoenix Class Action Administration Solutions at \$4,250.
6. Approves the PAGA settlement in the amount of \$15,000.00, with 75% (\$11,250) to be paid to the LWDA and the remaining 25% (\$3,750) to be distributed to the PAGA aggrieved employees on a pro rata basis.
7. Approve the attorneys' fees as stated at \$18,750.00, with costs of \$22,129.06, for litigation of this action. Though the Court is disinclined to find suggested rates are reasonable to the geographic region, the lodestar analysis generally indicates a *negative* multiplier even at more reasonable rates. (See Del Castillo Decl., ¶¶70-73 & Exh. 5.) The Court would also find costs to be appropriate and reasonable. (See Del Castillo Decl., ¶82 & Exh. 2.)
8. Direct the clerk to enter the Court's order as final judgment.
9. Reserve continuing jurisdiction for the purposes of implementing, enforcing, or administering the Settlement or enforcing the terms of the Judgment.
